

ETHER TERMINAL LLC

Sovereign Cryptographic Intelligence & Autonomous Operating Systems

NORTH CAROLINA SOS FILE NO. 3300608
HEADQUARTERS: GREENVILLE, NC 27834
TEL: (888) 861-9020 | WEB: ETHER-TERMINAL.COM
SECURITY CLASSIFICATION: CONFIDENTIAL / EVALUATION

ETHER TERMINAL LLC

SOVEREIGN ENTERPRISE SOFTWARE LICENSE AGREEMENT (EULA)

This Sovereign Enterprise Software License Agreement (the "Agreement") is entered into as of ___, 2026 (the "Effective Date"), by and between:

- **LICENSOR: Ether Terminal LLC**, a North Carolina limited liability company (SOS ID: 3300608, Greenville, NC) ("Licensor"), and
- **LICENSEE: _____** ("Licensee").

1. GRANT OF LICENSE

Subject to the terms and payment of applicable fees under this Agreement, Licensor grants to Licensee a non-exclusive, non-transferable, commercial license to deploy and operate the **Sovereign Ether OS** runtime engine and associated claims modules within Licensee's designated operational nodes/workstations.

- **Deployment Topology:** Air-Gapped / Sovereign Enclave on-premise deployment.
- **Authorized Scope:** Authorized solely for Licensee's internal business operations (claims adjusting, auto physical damage scoping, fleet risk mitigation, and forensic auditing).

2. SUBSCRIPTION FEES & 100% PILOT ROLLOVER CREDIT

1. **Annual Licensing Tier Selection:**
2. [] **Tier 1 (Commercial Fleet / APD):** \$36,000.00 USD / Year (Up to 10 Licensed Operational Nodes)
3. [] **Tier 2 (Sovereign Carrier Division):** \$75,000.00 USD / Year (Up to 50 Licensed Operational Nodes)
4. [] **Tier 3 (Institutional Enterprise):** \$120,000.00 USD / Year (Unlimited Nodes + Custom Heuristics Engine)
5. **Deduction of Pilot Evaluation Credit:** In accordance with the Sovereign Pilot Evaluation Agreement, **one hundred percent (100%) of the Pilot Evaluation Deposit (\$9,500.00 or \$22,500.00 USD)** paid by Licensee shall be deducted directly from Invoice #1 of this Agreement. Net Year 1 cash outlay is reduced dollar-for-dollar.
6. **Payment Terms:** Net thirty (30) days from invoice date via Fedwire / ACH settlement.

3. AIR-GAP PRIVACY, DATA SOVEREIGNTY & ZERO AI TRAINING

1. **Zero External Telemetry Guarantee:** Licensor warrants that the Software contains zero tracking beacons, external telemetry reporting, or unauthorized phone-home mechanisms. All claim calculations, photos, telematics, and estimates remain exclusively on Licensee's local systems and workstations.
2. **Biometric Data Erasure:** In accordance with FIPS 140-3 and state biometric privacy statutes (Illinois BIPA 740 ILCS 14/, California CCPA/CPRA, and GLBA/HIPAA), all biometric identity verifications operate exclusively in volatile RAM and are zeroized upon session termination.

3. **Zero AI Training:** Licensor acquires zero rights to Licensee claims records, telematics, photos, or operational data. Zero Licensee data shall ever be used to train, refine, or calibrate multi-tenant machine learning models.
-

4. PROPRIETARY RESTRICTIONS, REVERSE-ENGINEERING BAN & COMPETITIVE COVENANT

1. **Reverse-Engineering, Decompilation & Disassembly Prohibition:** Licensee covenants and agrees that it shall not, directly or indirectly through any employee, affiliate, agent, consultant, contractor, or third party: (i) decompile, disassemble, reverse engineer, decrypt, extract, inspect, or otherwise attempt to derive or reconstruct the source code, underlying algorithms, protocol structure, mathematical formulations, or execution mechanics of the Software, its compiled binaries (`.dylib` , `.so` , `.dll` , `.exe` , `.app`), its WebAssembly runtime engines, cryptographic lease tokens, or local models; (ii) modify, adapt, translate, enhance, create derivative works of, or build upon the Software or any part thereof; or (iii) bypass, circumvent, tamper with, defeat, analyze, or disable any security controls, licensing mechanisms, cryptographic lease enforcement counters (`LeaseShieldEngine`), memory zeroization routines, or integrity verifications embedded within the Software.
 2. **Competitive Products, Copycats & Derivative Work Ban:** Licensee covenants and agrees that the Software, documentation, performance benchmarks, and architecture are proprietary trade secrets. Licensee shall not, directly or indirectly: (i) use, evaluate, test, or access the Software or any proprietary output or methodology to develop, design, train, build, benchmark, market, or sell a competing product, software, service, or forensic platform; (ii) conduct, publish, disclose, or disseminate comparative benchmark tests, speed audits, architectural analyses, or competitive intelligence regarding the Software to any third party without Licensor's prior written consent; or (iii) copy, clone, emulate, replicate, or simulate the user interface, algorithmic workflow, actuarial damage estimation heuristics, or local enclaved execution architecture of the Software.
 3. **AI & Neural Model Distillation Ban:** Licensee is expressly prohibited from capturing, logging, recording, or utilizing inputs, intermediate representations, acoustic forensic outputs, optical damage vectors, or settlement directives generated by the Software to train, fine-tune, distill, evaluate, or bootstrap any machine learning model, neural network, heuristic engine, or artificial intelligence system, whether proprietary or open-source.
 4. **Licensor Intellectual Property & Trade Secrets:** Licensor retains sole, exclusive, and unencumbered right, title, and interest in and to the Software, machine learning architectures, source code, object code, system architectures, mathematical models, cryptographic validation routines, zero-knowledge circuit parameters, and forensic heuristics, which constitute protected trade secrets under 18 U.S.C. § 1836 and international law.
 5. **Immediate Injunctive Relief & Liquidated Damages:** Licensee acknowledges and agrees that any violation or threatened breach of this Section 4 will cause immediate, irreparable, and incalculable harm to Licensor for which monetary damages alone would be inadequate. Consequently, Licensor shall be entitled to seek and obtain immediate injunctive relief, specific performance, and temporary restraining orders from any court of competent jurisdiction without the requirement of posting a bond or proving actual financial loss, in addition to all other legal remedies, attorney's fees, and statutory damages available at law or in equity.
-

5. LIMITED WARRANTY, REMEDIES & LIABILITY LIMITATION

1. **Warranty:** Licensor warrants that the Software will perform substantially in accordance with the provided documentation and specifications.
2. **Remedies:** Licensor's entire liability and Licensee's exclusive remedy for any breach of this warranty shall be, at Licensor's option: (a) correction of the defect through a software patch within ten (10) business days, or (b) termination of this Agreement with a pro-rata refund of unearned prepaid fees.

3. **Vendor Insurance & Liability Cap:** Licensor maintains Commercial General Liability (\$5M / \$10M aggregate), Technology E&O, and Cyber Risk insurance (ACORD 25 COI provided upon request). Except for gross negligence or willful misconduct, Licensor's aggregate liability under this Agreement shall not exceed the total annual license fees remitted by Licensee during the preceding 12-month period.
-

6. CONFIDENTIALITY & GOVERNING LAW

1. **Mutual NDA:** Each party agrees to protect the other's Confidential Information with at least reasonable care.
2. **Governing Law & Arbitration:** This Agreement shall be governed by and construed in accordance with the laws of the State of North Carolina, without regard to conflict of law principles. Any dispute arising hereunder shall be resolved through confidential binding commercial arbitration administered by the American Arbitration Association (AAA) in accordance with its Commercial Arbitration Rules.
-

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the Effective Date.

ETHER TERMINAL LLC (LICENSOR)

Signature: _____

Name: Authorized Corporate Officer

Title: Managing Director & Executive Officer

Date: ____

Entity: Ether Terminal LLC (North Carolina — SOS ID: 3300608)

Address: Corporate Headquarters, Greenville, NC (NC SOS ID: 3300608)

Contact: contact@ether-terminal.com

Phone: (888) 861-9020

Web: <https://ether-terminal.com>

LICENSEE (CUSTOMER)

Signature: _____

Authorized Name: _____

Title: _____

Company Name: _____

Date: ____

Corporate Email: _____

Billing / AP Contact: _____